TENTATIVE RULINGS

DEPT W15

JUDGE RICHARD Y. LEE

Date: June 04, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely*: (1) all counsel and self-represented parties appearing for such hearings **must,** prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website (link here); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." (Local Rule 375(c)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

#		
100	Maple Iron Grove LLC vs. Hudson, 25-01453870	Defendants, Gavin Charles Hudson, Todd Joseph Tromley, Rachel Alice Tromley seek an order vacating the defaults entered against them. Here, on 7/28/2025 default was entered as to Defendants. Thereafter, this motion was timely filed on 12/20/2025. The Court is inclined to grant the motion, however, the Motion "shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the

		application shall not be granted." [See CCP § 473(b).] Here, no proposed answer or other proposed pleading has been submitted with the Motion. Therefore, Defense counsel is ordered to appear at the hearing with the proposed pleading. Upon receipt by the Court, the Court will GRANT the motion, vacate the 7/28/2025 default and vacate the default prove up hearing, and order the proposed pleading to be separately filed and served. *Moving party to give notice.*
101	H&B Collision, Inc. vs. Collision Repair Tools LLC, 23-01345138	Arturo E. Matthews, Jr. ("Moving Attorney") moves to be relieved as Counsel of Record for Defendants, Collision Repair Tools, LLC and Bryan Robaina. In addition, "[t]he proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel--Civil (form MC-053) and must be lodged with the court with the moving papers. The order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known." (California Rules of Court, rule 3.1362(e).) Here, Moving Attorney has not lodged the required proposed order, nor do the proofs of service indicate service of the proposed order on the clients and opposing counsel. (See ROA 143, 145, 183.) Accordingly, the Motion to Be Relieved as Counsel is DENIED without prejudice. Moving attorney may re-file the motion curing the above deficiencies and seek to advance the hearing by ex parte. *The moving attorney is to give notice.*
102	Sanchez vs. Viana, 24-01412341	Daniel R. Sallus and Adam G. Carpinelli ("Moving Counsel") moves to be relieved as counsel of record for plaintiff Everardo Sanchez. The motion is GRANTED.

		The order relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) Moving attorney to give notice.
103	James Bay Resources Limited vs. Lockett & Horwitz, 23-01313001	*Off-Calendar.*
104	Ju vs. Yeo, 23-01347065	Defendant JUNG MI YEO ("YEO") will move the court for an order to stay the instant case during the adjudication of an earlier lawsuit pending in a different jurisdiction with identical claims, facts, and parties ("MOTION TO STAY"). *Farmland Irr. Co. v. Dopplmaier* (1957) 48 Cal.2d 208 advises: "When an action is brought in a court of this state involving the same parties and the same subject matter as an action already pending in a court of another jurisdiction, a stay of the California proceedings is not a matter of right, but within the sound discretion of the trial court. In exercising its discretion the court should consider the importance of discouraging multiple litigation designed solely to harass an adverse party, and of avoiding unseemly conflicts with the courts of other jurisdictions. It should also consider whether the rights of the parties can best be determined by the court of the other jurisdiction because of the nature of the subject matter, the availability of witnesses, or the stage to which the proceedings in the other court have already advanced." [*Farmland Irr. Co. v. Dopplmaier* (1957) 48 Cal.2d 208, 215.] Here, Defendant argues this case should be stayed while a dissolution case proceeds in Seoul, Korea between Plaintiff Sae Heung Ju and Defendant Jung Mi Yeo. Based on Attorneys John A. S. Baik (defense counsel herein) and Jae Hoon Choi (Moving party's attorney in Korea case) representations; and after considering the

		issues of comity, interest in adjudicating the issues, the prevention of multiple litigation and inconsistent result, judicial economy, and convenience of witnesses—this Court finds a stay is in order and resolution of the marriage dissolution in Korea should proceed first. Therefore, the unopposed Motion is GRANTED and this case is stayed. The Court sets an OSC re whether the stay should be lifted for December 10, 2026 at 1:30 p.m. *Defendant to give notice.*
105		*Off-calendar.*
106	Hackworth vs. Talend, 25-01469403	*Case Management Conference* *Demurrer to Amended Complaint* Defendant QLIKTECH INC., erroneously named as Talend ("Defendant") filed a Demurrer to the entire First Amended Complaint on the grounds that the Complaint is time barred and uncertain such that it fails to state facts sufficient to constitute the causes of action alleged. Plaintiff Jethro Hackworth, proceeding in pro per ("Plaintiff") filed an opposition. The First Amended Complaint contains the following causes of action: (1) failure to pay earned wages/wage theft in violation of Labor Code sections 201, 203, 226.7, 510, and 512, (2) waiting time penalties pursuant to Labor Code sections 201-203, and (3) breach of implied covenant of good faith and fair dealing. (ROA 39.) "[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.' [Citation.]" (*Morris v. JPMorgan Chase Bank, N.A*. (2022) 78 Cal.App.5th 279, 292.) "However, ' "[t]he fact that a party has alleged more than is required to justify his right does not obligate him to prove more than is essential, and the unnecessary allegations will be treated as surplusage unless the opposing party would be prejudiced."" (*Ibid*.)

		"No error or defect in a pleading is to be regarded unless it affects substantial rights." (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 240.) "The primary function of a pleading is to give the other party notice so that it may prepare its case [Citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights." (*Ibid*.) *I. STATUTE OF LIMITATIONS* Defendant argues that Plaintiff's causes of action are barred by the applicable statute of limitations. Defendant argues that the first and second causes of action for Labor Code violations are subject to a two year statute of limitations and began to accrue in 2018 when Plaintiff's employment with Defendant ended. (See FAC, ¶ 3 ["Plaintiff was employed by Talend until his separation in 2018."].) Defendant argues that the third cause of action for breach of implied covenant of good faith and fair dealing is subject to "either a four year (written contract) or two year (oral contract) statute of limitations. Cal. Civ. Proc. Code § 337(a) (four year limitations period for written contracts); Cal. Civ. Proc. Code § 339 (1) (two year limitations period for oral agreements)." In opposition, Plaintiff argues that the statute of limitations shall be tolled because Plaintiff was pursuing his workers' compensation claims. "The equitable tolling of statutes of limitations is a judicially created, nonstatutory doctrine." (*Hopkins v. Kedzierski* (2014) 225 Cal.App.4th 736, 746.) "It is 'designed to prevent unjust and technical forfeitures of the right to a trial on the merits when the purpose of the statute of limitations—timely notice to the defendant of the plaintiff's claims—has been satisfied.'" (*Ibid*.) "Where applicable, the doctrine will suspend or extend a statute of limitations as necessary to ensure fundamental practicality and fairness." (*Ibid*.) "In the majority of cases in which courts apply the equitable tolling doctrine, the

		plaintiff possesses several legal remedies, and reasonably and in good faith pursues one designed to lessen the extent of his or her injuries or damage." (*Hu v. Silgan Containers Corp*. (1999) 70 Cal.App.4th 1261, 1270.) "In these cases, if the defendant is not prejudiced, the running of the limitations period is tolled as to the other available remedies." (*Ibid*.) "Equitable tolling requires that three essential elements be satisfied by the party seeking the tolling: "(1) timely notice to the defendant in filing the first claim; (2) lack of prejudice to defendant in gathering evidence to defend against the second claim; and, (3) good faith and reasonable conduct by the plaintiff in filing the second claim." (*Aguilera v. Heiman* (2009) 174 Cal.App.4th 590, 598.) "The requirement of timely notice basically means the first claim must have been filed within the statutory period; the filing of the first claim also must have alerted the defendant in the second claim of the need to begin investigating the facts that form the basis for the second claim." (*Id*., 598–599.) "Normally, this means the defendant in the first claim is the same one being sued in the second." (*Ibid*.) "The second prerequisite in essence translates into a requirement that the facts of the two claims be identical or at least so similar that the defendant's investigation of the first claim will put him in a position to fairly defend the second." (*Ibid*.) "So long as the defendant is timely placed on notice by the first claim so he can investigate in order to appropriately defend the second claim, it is irrelevant whether those two claims are alternative or parallel, consistent or inconsistent, compatible or incompatible." (*Ibid*. [internal quotations omitted].) "It is fundamental that the primary purpose of statutes of limitation is to prevent the assertion of stale claims...." (*Scharer v. San Luis Rey Equine Hospital, Inc.* (2012) 204 Cal.App.4th 421, 429.) "[T]he right to be free of stale claims in time comes to prevail over the right to prosecute them." (*Id*., 429–430.) "However, courts have adhered to a general policy which favors relieving plaintiff from the bar of a limitations statute when,

		possessing several legal remedies he [or she], reasonably and in good faith, pursues one designed to lessen the extent of his [or her] injuries or damage." (*Id*., 430.) Importantly, "[a] general demurrer based on the statute of limitations is only permissible where the dates alleged in the complaint show that the action is barred by the statute of limitations." (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324.) Here, the court finds that it is unable to calculate the statute of limitations on the face of the SAC. While Plaintiff alleges that his employment with Defendant terminated in 2018, Plaintiff also alleges that he pursued a worker's compensation claim that ended in 2024. There are no allegations as to when the worker's compensation proceedings began and therefore the Court is unable to determine the length of which the statute of limitations should be equitably tolled. As alleged, the dates in the SAC do not establish that the statute of limitations bars the action. The Demurrer is OVERRULED as to this argument. *II. CAUSES OF ACTION* A. First Cause of Action for Failure to Pay Earned Wages/Wage Theft in violation of Labor Code sections 201, 203, 226.7, 510, and 512 and Second Cause of Action for Waiting Time Penalties pursuant to Labor Code sections 201-203 Plaintiff's first cause of action is for failure to pay earned wages/wage theft in violation of Labor Code sections 201, 203, 226.7, 510, and 512. Plaintiff's second cause of action is for violation of waiting time penalties pursuant to Labor Code sections 201-203. Labor Code section 201 states: "If an employer discharges an employee, the wages earned and unpaid at the time of discharge are due and payable immediately." (Lab. Code, § 201, subd. (a).) Labor Code section 203 states:

		"If an employer willfully fails to pay, without abatement or reduction, in accordance with Sections 201, 201.3, 201.5, 201.6, 201.8, 201.9, 202, and 205.5, any wages of an employee who is discharged or who quits, the wages of the employee shall continue as a penalty from the due date thereof at the same rate until paid or until an action therefor is commenced; but the wages shall not continue for more than 30 days." (Lab. Code, § 203, subd. (a).) Labor Code section 226.7 states: "(a) As used in this section, "recovery period" means a cooldown period afforded an employee to prevent heat illness. (b) An employer shall not require an employee to work during a meal or rest or recovery period mandated pursuant to an applicable statute, or applicable regulation, standard, or order of the Industrial Welfare Commission, the Occupational Safety and Health Standards Board, or the Division of Occupational Safety and Health. (c) If an employer fails to provide an employee a meal or rest or recovery period in accordance with a state law, including, but not limited to, an applicable statute or applicable regulation, standard, or order of the Industrial Welfare Commission, the Occupational Safety and Health Standards Board, or the Division of Occupational Safety and Health, the employer shall pay the employee one additional hour of pay at the employee's regular rate of compensation for each workday that the meal or rest or recovery period is not provided. (d) A rest or recovery period mandated pursuant to a state law, including, but not limited to, an applicable statute, or applicable regulation, standard, or order of the Industrial Welfare Commission, the Occupational Safety and Health Standards Board, or the Division of Occupational Safety and Health, shall be counted as hours worked, for which there shall be no deduction from wages. This subdivision is declaratory of existing law. (e) This section shall not apply to an employee who is exempt from meal or rest or recovery period requirements pursuant to

		other state laws, including, but not limited to, a statute or regulation, standard, or order of the Industrial Welfare Commission." (Lab. Code, § 226.7, subds. (a) – (e).) Labor Code section 510 states: "(a) Eight hours of labor constitutes a day's work. Any work in excess of eight hours in one workday and any work in excess of 40 hours in any one workweek and the first eight hours worked on the seventh day of work in any one workweek shall be compensated at the rate of no less than one and one-half times the regular rate of pay for an employee. Any work in excess of 12 hours in one day shall be compensated at the rate of no less than twice the regular rate of pay for an employee. In addition, any work in excess of eight hours on any seventh day of a workweek shall be compensated at the rate of no less than twice the regular rate of pay of an employee. Nothing in this section requires an employer to combine more than one rate of overtime compensation in order to calculate the amount to be paid to an employee for any hour of overtime work. The requirements of this section do not apply to the payment of overtime compensation to an employee working pursuant to any of the following: (1) An alternative workweek schedule adopted pursuant to Section 511. (2) An alternative workweek schedule adopted pursuant to a collective bargaining agreement pursuant to Section 514. (3) An alternative workweek schedule to which this chapter is inapplicable pursuant to Section 554. (b) Time spent commuting to and from the first place at which an employee's presence is required by the employer shall not be considered to be a part of a day's work, when the employee commutes in a vehicle that is owned, leased, or subsidized by the employer and is used for the purpose of ridesharing, as defined in Section 522 of the Vehicle Code. (c) This section does not affect, change, or limit an employer's liability under the workers' compensation law." (Lab. Code, § 510.) Labor Code section 512 states:

		"An employer shall not employ an employee for a work period of more than five hours per day without providing the employee with a meal period of not less than 30 minutes, except that if the total work period per day of the employee is no more than six hours, the meal period may be waived by mutual consent of both the employer and employee. An employer shall not employ an employee for a work period of more than 10 hours per day without providing the employee with a second meal period of not less than 30 minutes, except that if the total hours worked is no more than 12 hours, the second meal period may be waived by mutual consent of the employer and the employee only if the first meal period was not waived." (Lab. Code, § 512, subd. (a).) Here, Defendant attacks the allegations in the FAC by arguing that Plaintiff only alleges conclusory allegations and does not allege sufficient facts to support the claims. Notably, Defendant failed to address each statute pursuant to which Plaintiff brings his claims and only generally argues that Plaintiff has not alleged facts to support a claim for overtime, failure to pay mean or rest period penalties, or wages dur at termination. This alone is grounds to overrule the demurrer. Regardless, the Court finds that Plaintiff has alleged sufficient facts to gives Defendant notice of the issues sufficient to enable preparation of a defense. In particular, Plaintiff alleges the following facts in support of his cause of action for failure to pay earned wages and wage theft: "This Complaint clarifies that the action seeks civil recovery of unpaid wages and backpay that were not included or resolved in Plaintiffs prior workers' compensation case (ADJ13166524). The action is independent of that settlement and arises from Talend's continuing failure to pay earned compensation owed under California law." (FAC, ¶ 1.) "During his employment, Plaintiff performed his duties diligently and contributed

		substantially to Talend's operations and profitability." (FAC, ¶ 4.) "After separation, Plaintiff discovered that Talend failed to pay earned wages, including overtime, meal and rest period compensation, and other legally required payments." (FAC, ¶ 5.) "The current civil case seeks to recover unpaid wages, interest, and statutory penalties arising from Talend's willful failure to pay compensation lawfully earned before and after separation." (FAC, ¶ 7.) "Talend failed to pay Plaintiff for overtime, rest and meal break premiums, and final wages due at the time of separation in 2018." (FAC, ¶ 11.) Plaintiff also attached a number of exhibits to the FAC that provide further information as to the Labor Code violations Plaintiff asserts. The Court finds that these allegations are sufficient to state the first cause of action is for failure to pay earned wages/wage theft in violation of Labor Code sections 201, 203, 226.7, 510, and 512 and second cause of action is for violation of waiting time penalties pursuant to Labor Code sections 201-203. The demurrer is OVERRULED as to the first cause of action and second cause of action. *B. Breach of Implied Covenant of Good Faith And Fair Dealing* Plaintiff's third cause of action is for breach of implied covenant of good faith and fair dealing. "The covenant of good faith is read into contracts in order to protect the express covenants or promises of the contract, not to protect some general public policy interest not directly tied to the contract's purposes." (*Berlanga v. University of San Francisco* (2024) 100 Cal.App.5th 75, 88, reh'g denied (Mar. 15, 2024).) "Without a contractual relationship, [a plaintiff] cannot state a cause of action for breach of the implied covenant." (*Ibid*.)

		"In essence, the covenant is implied as a supplement to the express contractual covenants, to prevent a contracting party from engaging in conduct which (while not technically transgressing the express covenants) frustrates the other party's rights to the benefits of the contract." (*Berlanga v. University of San Francisco* (2024) 100 Cal.App.5th 75, 88, reh'g denied (Mar. 15, 2024).) "It 'cannot impose substantive duties or limits on the contracting parties beyond those incorporated in the specific terms of their agreement.' " (*Ibid*.) Plaintiff alleges the following in support of his third cause of action for breach of implied covenant of good faith and fair dealing: "Every employment relationship and contractual obligation in California includes an implied covenant of good faith and fair dealing." (FAC, ¶ 19.) "Talend violated this covenant by intentionally withholding earned compensation, misrepresenting its corporate status to evade responsibility, and disregarding Plaintiff's rights as a former employee." (FAC, ¶ 20.) "These acts were carried out maliciously and in bad faith, causing Plaintiff continuing economic harm and emotional distress." (FAC, ¶ 21.) Here, the Court finds that Plaintiff has not alleged sufficient facts to establish the contractual relationship between Plaintiff and Defendant pursuant to which the implied covenant of good faith can be established. The demurrer to the third cause of action for breach of implied covenant of good faith and fair dealing is SUSTAINED WITH 20 DAYS LEAVE TO AMEND. The Case Management Conference is continued to August 13, 2026 at 1:30 p.m. *Defendant to give notice.*

107	Anabi Real Estate Development, LLC vs. DiMaggio, 24-01408901	Defendants Richard A. DiMaggio and Roxanne T. DiMaggio, individually and as Trustees of The DiMaggio Family Trust Dated May 4, 2022 ("DiMaggio Defendants") move for an order expunging three Notices of Pendency of Action filed by plaintiffs Anabi Real Estate Development, LLC, Anabi Oil Corporation, RADC Enterprises, Inc., Rebel Land and Development, LLC, Beck Oil, Inc., S&M Oil Corporation, and Nevada AK, Inc. ("Plaintiffs") and awarding them attorney's fees and costs jointly and severally against Plaintiffs in the amount of $18,085.00. "A lis pendens—also called a notice of pendency of action—is a document filed with a county recorder that provides constructive notice of a pending lawsuit affecting the real property described in the notice. [Citations.] Any party may record a lis pendens when the lawsuit involves a 'real property claim.' " (*Shoker v. Superior Court of Alameda County* (2022) 81 Cal.App.5th 271, 275.) "At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice." (Code Civ. Proc., § 405.30.) "In proceedings under this chapter, the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim." (Code Civ. Proc., § 405.31.) " 'Real property claim' means the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property or (b) the use of an easement identified in the pleading, other than an easement obtained pursuant to statute by any regulated public utility." (Code Civ. Proc., § 405.4.) A notice of lis pendens shall also be expunged if the claimant has not established by a preponderance of the evidence the probable validity of the real property claim. (Code Civ. Proc., § 405.32.) Plaintiffs allege that the DiMaggio Defendants obtained money from them through false statements which induced Plaintiffs to enter

		into contracts and advance significant sums for purposes of performing services, purchasing equipment, materials, and supplies, and paying for fees expenses, and subcontractors. The DiMaggio Defendants abandoned all work before completing Plaintiffs' respective projects and failed to deliver the equipment, supplies, materials, and other items for which they had been paid. Plaintiffs further allege, upon information and belief, that the DiMaggio Defendants misappropriated the funds advanced by Plaintiffs to pay, in whole or in part, for real estate and improvements for their own personal uses and investments. Plaintiffs seek, among other things, a constructive trust for their benefit over properties owned by the DiMaggio Defendants. "A constructive trust is an equitable remedy that compels a wrongdoer—one who has property or proceeds to which he is not justly entitled—to transfer same to its rightful owner." (*Shoker*, 81 Cal.App.5th at p. 278.) "The case law distinguishes between two subtypes of constructive trust claims. First, there are constructive trust claims that are akin to fraudulent conveyance claims because they seek a constructive trust on real property that was itself wrongfully taken and, if successful on the merits, plaintiffs would regain title to or possession of the same property. On the other hand, there are claims seeking a constructive trust or equitable lien on different property, merely as a means to secure collection of a debt." (*Id*. at pp. 282-283.) " '[A]llegations of equitable remedies, even if colorable, will not support a lis pendens if, ultimately, those allegations act only as a collateral means to collect money damages.' " (*Id*. at p. 279.) In *Shoker*, the plaintiffs alleged that the defendants obtained title to ten rental properties that had been owned by the plaintiffs pursuant to an investment scheme. Because the plaintiffs' causes of action alleged that the properties had been wrongfully acquired via a conspiracy and, if meritorious, they would affect title to that real property, the court held that their claims

		fell squarely within the plain language of the statute. (Id. at p. 282.) Here, Plaintiffs are not alleging that the DiMaggio Defendants wrongfully obtained any of the real property from Plaintiffs, as the plaintiffs in Shoker alleged. Instead, they are alleging that the DiMaggio Defendants misappropriated funds paid by Plaintiffs for certain services and goods and, upon information and belief, used those funds to pay for some or all of the real property and/or for other personal uses. These allegations demonstrate that Plaintiffs' claims of a constructive trust over the real property is being used merely as a means to secure the collection of debts under the parties' various agreements. If Plaintiffs prevail on their claims, title to the real property would not be affected. Therefore, the Court finds that Plaintiffs' pleading does not include a real property claim. Notably, Plaintiffs do not allege what information has led them to believe that the DiMaggio Defendants misappropriated funds to pay for the real estate. Thus, their allegations made on information and belief are not proper. (*Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158.) Further, even assuming a real property claim exists, on a motion to expunge a lis pendens, it is Plaintiffs' burden to establish by a preponderance of the evidence the probable validity of a real property claim. (Code Civ. Proc., § 405.30.) Plaintiffs have submitted evidence showing when the real properties were acquired by the DiMaggio Defendants and that Plaintiffs paid money for invoices submitted by DiMaggio Maintenance, Inc. for work, materials, and/or equipment that was never delivered. None of this evidence suggests, let alone shows by a preponderance of the evidence, that money received by DiMaggio Maintenance, Inc. was used to purchase the subject real property. Plaintiffs have failed to meet their burden here. In light of all the above, the Motion to Expunge is GRANTED.

		The DiMaggio Defendants are entitled to reasonable attorney's fees and costs of making the motion unless the Court finds that Plaintiffs acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust. (Code Civ. Proc., § 405.38.) Plaintiffs argue they have acted with substantial justification even though they are presently unable to complete the tracing of dollars. The Court disagrees. Plaintiffs have presented virtually no evidence or information in support of their allegations regarding the real property. Thus, the Court finds that Plaintiffs have not acted with substantial justification. However, the Court finds the DiMaggio Defendants' request to be inflated. The DiMaggio Defendants are awarded attorney's fees and costs against Plaintiffs, jointly and severally, in the total amount of $4,500.00. The Case Management Conference is continued to June 18, 2026 at 1:30 p.m. *Moving party to give notice.*
108	Ally Bank vs. Carmona, 25-01531431	Plaintiff Ally Bank ("Plaintiff") applies to the Court for a writ of possession against defendant Alejandro S. Carmona ("Defendant") regarding the subject 2021 Ford F-250 motor vehicle, Vehicle Identification No. 1FT7W2BT4MED43449. Prior to a hearing on a noticed application for writ of possession, a defendant shall be served with a copy of the summons and complaint, notice of application and hearing, and a copy of the application and any supporting affidavits. (Code Civ. Proc., § 512.030(a).) If the defendant has not appeared, the notice and other papers must be personally served. (Id., § 512.030(b).) Otherwise, written notice must be given. (Id., § 1005(a)(2).) Here, there is no proof of service showing that Defendant has been served with the summons and complaint, notice of application, or the application and supporting declaration. Thus, the hearing on Plaintiff's application is CONTINUED to June 25, 2026 at 1:30 p.m. The Case Management Conference is also continued to June 25, 2026 at 1:30 p.m.

		Plaintiff to give notice.
109	Hernandez vs. Evergreen Royalle, 24-01417052	Defendants Evergreen Royalle, Ltd., and Jose Toro seek an order sustaining their demurrer to the 1st, 8th, 9th, 11th, and 13th causes of action of Plaintiff's Complaint based on failure to state sufficient facts to constitute a cause of action. Initially, a Request for Dismissal was filed on 5/18/2026 as to the 8th and 9th causes of action. As such, the demurrers to those causes of action are moot and will not be addressed. *MEET AND CONFER* Code of Civil Procedure section 430.41, subdivision (a) requires that prior to filing a demurrer, "the demurring party . . . . meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer . . . ." Similarly, prior to filing a motion to strike, "the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion to strike . . . ." (Code Civ. Proc. § 435.5(a).) Code of Civil Procedure section 430.41, subdivision (a)(3) requires that the demurring party file and serve with the demurrer a declaration stating either "[t]he means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer," or that "the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith." "If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward

		reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.” (*Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 356.) Here, the declaration of Attorney Ross A. Spector, indicates that on October 21, 2025, he sent an email to Plaintiff’s attorney fully explaining the grounds for his clients’ position. (Decl. of Spector¶2.) Plaintiff’s counsel never responded to the email. (Id.¶3.) The above establishes no meet and confer as required by Code of Civil Procedure sections 430.41 or 435.5 effectively took place. Based on the foregoing, the Court CONTINUES the hearing on the demurrer and motion to strike to June 25, 2026 at 1:30 p.m. in Department W15. The Court ORDERS the parties to meet and confer in person, by zoom or video remote technology, concerning the issues raised in the demurrer and motion to strike. Defendant to file and serve a supplemental declaration setting forth the meet and confer efforts by counsel for the parties as to the issues raised by the demurrer and motion to strike, the outcome of the meet and confer, and what issues, if any, remain for the Court. The supplemental declaration to be filed no later than nine (9) court days before the new hearing date. The Case Management Conference is continued to June 25, 2026 at 1:30 p.m. *Defendant to give notice.*
110	Lee vs. Kingsbury, 25-01472404	<u>Demurrer</u> Defendant, Michael Kingsbury (“Kingsbury”), demurs to all seven causes of action asserted in the First Amended Complaint (“FAC”) of Plaintiff, Jessica V. Lee (“Plaintiff”). *Uncertainty* Kingsbury contends that the FAC contains multiple factual contradictions which render the pleading uncertain under Code of Civil Procedure §430.10(f) because Defendant

		cannot reasonably ascertain what factual theory is being asserted. Code of Civil Procedure section 430.10(f) provides that a defendant may demur on the ground that the pleading is uncertain. "As used in this subdivision, 'uncertain' includes ambiguous and unintelligible." "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal App.4th 612, 616.) Demurrers for uncertainty "are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (*Lickiss v. Fin. Indus. Regulatory Auth.* (2012) 208 Cal.App.4th 1125, 1135.) The allegations that services were not provided but a certificate was issued, and that a refund was refused and then a refund was completed are not contradictory. In particular, the FAC alleges that on Kingsbury refused to refund the money, i.e., $17,000, and that the $17,000 "was eventually repaid on May 1 after suit was filed . . . ." (Complaint, Summary of Facts.) Lastly, it is alleged that Kingsbury stated in court that he was not the owner and that Plaintiff alleges that "Kevin Young is the owner and principal responsible for the misconduct." (Complaint, Summary of Facts.) To the extent that this allegation is uncertain, it may be clarified in discovery. *Failure to State Facts Sufficient to Constitute a Cause of Action* *First and Second Causes of Action for Fraud and Negligent Misrepresentation* Kingsbury contends that Plaintiff affirmatively alleges in her own FAC that the entirety of the disputed $17,000 was refunded to her on May 1, 2025, and that this fact is fatal to her claims for fraud, and negligent misrepresentation. Kingsbury also contends that the first cause of action for fraud fails to state facts sufficient to constitute a cause of action and is uncertain because the FAC contains only

vague allegations of "false representations" without identifying the precise statements made, who made them, when they were made, or in what context; that the FAC does not allege facts demonstrating that any Defendant knew the alleged representations were false at the time they were made; that conclusory allegations that Defendants "knowingly" made misrepresentations are insufficient; and that Plaintiff does not explain why her reliance was justifiable.

As to the second cause of action for negligent misrepresentation, Kingsbury additionally contends that it fails to state facts sufficient to constitute a cause of action because the FAC does not allege facts demonstrating Defendants lacked reasonable grounds for any alleged representation; the second cause of action is duplicative of the first cause of action as it relies on the identical factual allegations and should be dismissed, and that any alleged sales pitches about trading success, quality of program, or future results constitute non-actionable opinions and sales puffery, not actionable misrepresentations.

Plaintiff contends that the FAC sufficiently alleges fraud.

" 'The elements of fraud that will give rise to a tort action for deceit are: '(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.' " (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974.)

"The essential elements of a count for negligent misrepresentation are the same [as intentional misrepresentation] except that it does not require knowledge of falsity, but instead requires a misrepresentation of fact by a person who has no reasonable grounds for believing it to be true." (*Chapman v. Skype Inc*. (2013) 220 Cal.App.4th 217, 231.)

"Fraud must be pleaded with particularity. General and conclusory allegations are inadequate. [Citation.]" (*Laukhart v. El*

		Macero Homeowners Assn. (2023) 92 Cal. App. 5th 889, 903.) To survive demurrer, plaintiff must plead facts that "show how, when, where, to whom, and by what means the representations were tendered." (*Hamilton v. Greenwich Investors XXVI, LLC* (2011) 195 Cal.App.4th 1602, 1614.) "Fraud must be specifically pleaded; a general pleading of the legal conclusion of fraud is insufficient. Every element of the cause of action must be alleged in full, factually and specifically. [Citation.]" (*Tindell v. Murphy* (2018) 22 Cal.App.5th 1239, 1249.) "This pleading requirement of specificity [for a fraud cause of action] applies not only to the alleged misrepresentation, but also to the elements of causation and damage." (*Moncada v. West Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 776.) "[W]hen a complaint contains allegations that are fatal to a cause of action, a plaintiff cannot avoid these defects simply by filing an amended complaint that omits the problematic facts or pleads facts inconsistent with those alleged earlier. [Citations.]" (*Banis Restaurant Design, Inc. v. Serrano* (2005) 134 Cal.App.4th 1035, 1044.) Unless a plaintiff merely seeks to rescind a contract, a plaintiff must suffer actual monetary loss to recover on a fraud claim. (*Alliance Mortgage Co. v. Rothwell* (1995) 10 Cal.4th 1226, 1240.) "There are two measures of damages for fraud: out-of-pocket and benefit of the bargain. [Citation.] The 'out-of-pocket' measure of damages 'is directed to restoring the plaintiff to the financial position enjoyed by him prior to the fraudulent transaction, and thus awards the difference in actual value at the time of the transaction between what the plaintiff gave and what he received. The "benefit-of-the-bargain" measure, on the other hand, is concerned with satisfying the expectancy interest of the defrauded plaintiff by putting him in the position he would have enjoyed if the false representation relied upon had been true; it awards the difference in value between what the plaintiff actually received and what he was fraudulently led to believe he would receive.' [Citations.]" (*Ibid*.) 'In

		California, a defrauded party is ordinarily limited to recovering his "out-of-pocket" loss . . . .' [Citations.]" (*Ibid*.) "Misrepresentation, even maliciously committed, does not support a cause of action unless the plaintiff suffered consequential damages. [Citation.]" (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1064 [internal quotations omitted].) " 'If the existence—and not the amount—of damages alleged in a fraud pleading is "too remote, speculative or uncertain," then the pleading cannot state a claim for relief.' [Citation.]" (*Ibid*.) "[I]t is not enough for the complaint to allege damage was suffered. The fraud plaintiff must also allege his damages were caused by the actions he took in reliance on the defendant's misrepresentations." (*Ibid*.) As to pleading justifiable reliance, "the plaintiff must set 'forth facts to show that his or her actual reliance on the representations was justifiable, so that the cause of the damage was the defendant's wrong and not the plaintiff's fault.' [Citation.] There must be more pled than a simple statement plaintiff justifiably relied on the statements. [Citation.] The complaint must contain 'allegations of facts showing that the actual inducement of plaintiffs . . . was justifiable or reasonable. [Citations.]' [Citation.]" (*Id*. at pp. 1066-1067.) Here, the FAC alleges that Plaintiff attended training courses held by Trading Academy LLC, initially paying $199; that on January 9, 2025, Plaintiff was pressured into paying an additional $17,000 "through high-pressure tactics and false representations regarding services and refund rights"; that on January 17, a certificate was issued despite no services being delivered; that Kingsbury refused to refund the money, citing a "three-day no-refund" policy; that Plaintiff filed the instant action on April 4, 2025; and that the $17,000 was repaid on May 1, 2025. (Complaint, Summary of Facts.) Plaintiff also alleges that while the $17,000 was repaid, "Plaintiff had already suffered economic loss, emotional distress, and related damages," and "time lost, emotional distress, and financial hardship." (Ibid.) The FAC seeks

		general and special damages along with punitive and exemplary damages and pre- and post-judgment interest and costs. (Complaint, Relief Sought.) All factual allegations are taken as true. All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal. 4th 962, 966-67.) The existence of damages is uncertain. The allegation that Plaintiff was refunded the $17,000 indicates that Plaintiff has suffered no damages. Notably, the only damages Plaintiff identifies in the opposition is the payment of $17,000. Plaintiff's allegations that she suffered damages for "economic loss, emotional distress, and related damages," and "time lost, emotional distress, and financial hardship" is not pleaded with the requisite particularity. Nor does Plaintiff show that these types of damages are recoverable for a claim of fraud or negligent misrepresentation. Additionally, the FAC does not allege the precise misrepresentation that was made, nor does it allege facts showing how, when, where, and by what means. Further, the FAC does not allege the other elements of fraud, i.e., knowledge of falsity, and justifiable reliance with the requisite specificity. The allegation that Defendants knowingly or negligently misrepresented the nature of the program and refund rights is conclusory. The court may ignore allegations that are legal conclusions. (*Schep v. Capital One, N.A.* (2017) 12 Cal.App.5th 1331, 1336.) The court is to treat the demurrer as an admission by defendants of all material facts pled in the complaint, but not logical inferences, contentions, or conclusions of fact or law. (*Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal.4th 148, 152.) The second cause of action for negligent misrepresentation fails to state sufficient facts with particularity for the same reasons as the first cause of action. Also, the FAC does not allege facts showing misrepresentation of fact

		by a person who has no reasonable grounds for believing it to be true. Further, the second cause of action relies on the same allegations as the first cause of action, and therefore is duplicative. A judge may properly sustain a demurrer without leave to amend as to a cause of action that contains allegations of other causes of action and, therefore, does not add anything to the complaint by way of fact, theory, or recovery. (*Palm Springs Villas II Homeowners Ass'n, Inc. v Parth* (2016) 248 Cal.App.4th 268, 290 (cause of action for breach of governing documents was duplicative of cause of action for breach of fiduciary duty).) Plaintiff requests leave to amend, if any portion of the FAC requires clarification. Although Plaintiff has not articulated how she can cure any of the defects, including the one as to damages, nor is a potentially effective amendment apparent, the Court SUSTAINS, with 20 days leave to amend, the demurrer to the first and second causes of action. *Third Cause of Action* Kingsbury contends that the third cause of action for common count – money had and received fails to state facts sufficient to constitute a cause of action because Plaintiff expressly alleges the $17,000 was refunded on May 1, 2025, such that the second and third elements—that defendant has not given the money and refuses to give it—are contradicted by Plaintiff's own allegations. Plaintiff does not dispute these arguments, and therefore concedes the same. It is axiomatic the failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Sup. Ct*. (2000) 78 Cal.App.4th 562, 566 ["By failing to argue the contrary, plaintiffs concede this issue"]; *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 ["failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot"]; *Glendale Redevelopment Agency v. Parks* (1993) 18

		Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) A cause of action for money had and received is stated if it is alleged that the defendant 'is indebted to the plaintiff in a certain sum "for money had and received by the defendant for the use of the plaintiff." '[Citation.]" (*Farmers Ins. Exch. v. Zerin* (1997) 53 Cal.App.4th 445, 460.) The allegation that the $17,000 was repaid is fatal to the third cause of action. The demurrer to the third cause of action is SUSTAINED, without leave to amend. *Fourth Cause of Action* Kingsbury contends that the fourth cause of action for unfair competition fails to state facts sufficient to constitute a cause of action and is uncertain. Kingsbury asserts that it is uncertain which prong of "unlawful, unfair, and fraudulent" is being alleged, and the FAC does not provide facts to support each prong. Plaintiff does not dispute these arguments, and therefore concedes the same. "The UCL [Business and Professions Code section 17200 et seq.] defines unfair competition as 'any unlawful, unfair or fraudulent business act or practice . . . ." [Citation.]" (*In re Tobacco Cases* (2009) 46 Cal.4th 298, 311.) Thus, there are three prongs under which a claim may be established under the UCL. (*Daro v. Superior Court* (2007) 151 Cal.App.4th 1079, 1093.) "An act can be alleged to violate any or all of the three prongs of the UCL—unlawful, unfair, or fraudulent." (*Berryman v. Merit Property Management, Inc*. (2007) 452 Cal.App.4th 1544, 1554.) "A plaintiff alleging unfair business practices under [Business and Professions Code Sections 17000, et seq.] must state with reasonable particularity the facts supporting the statutory elements of the violation. (*Khoury v. Maly's of California, Inc*. (1993) 14 Cal.App.4th 612, 619.) The FAC alleges in conclusory fashion that "Defendants knowingly or negligently misrepresented the nature of their program

		and refund rights," and that this conduct "was unlawful, unfair, and fraudulent, ..." (Complaint, Allegations.) Thus, Plaintiff asserts that Kingsbury's conduct violated all three prongs. However, the FAC does not state with reasonably particularly the facts supporting the elements of the violation for any of the prongs. "An unlawful business practice or act is an act or practice, committed pursuant to a business activity, that is at the same time forbidden by law." (*Klein v. Earth Elements, Inc*. (1997) 59 Cal. App. 4th 965, 969.) "Under its 'unlawful' prong, 'the UCL borrows violations of other laws ... and makes those unlawful practices actionable under the UCL.' [Citation.] Thus, a violation of another law is a predicate for stating a cause of action under the UCL's unlawful prong." (*Berryman v. Merit Property Management, Inc.* (2007) 152 Cal.App.4th 1544, 1554.) The FAC contains no allegations of what law has been violated. Significantly, the UCL's remedies are limited. Business & Professions Code section 17203 states, in part: "Any person who engages, has engaged, or proposes to engage in unfair competition may be enjoined in any court of competent jurisdiction. The court may make such orders or judgments, including the appointment of a receiver, as may be necessary to prevent the use or employment by any person of any practice which constitutes unfair competition, as defined in this chapter, or as may be necessary to restore to any person in interest any money or property, real or personal, which may have been acquired by means of such unfair competition." (Bus. & Prof. Code § 17203.) "A UCL action is equitable in nature; damages cannot be recovered." (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1144.) Prevailing plaintiffs are generally limited to injunctive relief and restitution. (*Ibid*.) "Under the UCL, an individual may recover profits unfairly obtained to the extent that these profits represent monies given to the defendant or benefit in which the plaintiff has an ownership interest." (*Id*. at p. 1148.)

		The FAC seeks "[r]estitution/disgorgement under Bus. & Prof. Code § 17200." (Complaint, Relief Sought.) However, as the FAC alleges that Plaintiff was repaid the $17,000 she paid, such that she already obtained restitution, and no other allowable relief is sought, the demurrer to the fourth cause of action is SUSTAINED, without leave to amend. *Fifth Cause of Action* Kingsbury contends that the fifth cause of action for intentional infliction of emotional distress ("IIED") fails to state facts sufficient to state a claim because high-pressure sales tactics and allegedly false representations in a commercial transaction do not rise to the level of outrageousness required for IIED; the FAC contains only conclusory allegations without facts demonstrating Defendants intended to cause emotional distress or acted with reckless disregard of that probability; and this cause of action is duplicative of the fraud claims as the emotional distress is merely incidental to the fraud. Plaintiff does not dispute these arguments, and therefore concedes the same. "A cause of action for intentional infliction of emotional distress exists when there is '(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.' A defendant's conduct is 'outrageous' when it is so 'extreme as to exceed all bounds of that usually tolerated in a civilized community.' And the defendant's conduct must be 'intended to inflict injury or engaged in with the realization that injury will result.' " (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050–1051.) "Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyance, petty oppressions, or other trivialities." (*Bock v.*

		Hansen (2014) 225 Cal.App.4th 215, 233 (internal quotations omitted).) "The complaint must plead specific facts that establish severe emotional distress resulting from defendant's conduct. [Citation.]" (*Michaelian v. State Comp. Ins. Fund* (1996) 50 Cal. App. 4th 1093, 1114.) Here, the FAC alleges that Plaintiff was pressured into paying an additional $17,000 "under high-pressure sales tactics and false representations that the payment was necessary for training and certification," that "Defendants knowingly or negligently misrepresented the nature of the program and refund rights; and that such conduct caused "significant stress, anxiety, and physical symptoms corroborated by EMS and medical records from October 2, 2025." (Complaint, Summary of Facts and Allegations.) The allegations above do not amount to extreme and outrageous conduct, and there are no facts supporting that Kingsbury intended to cause, or acted with reckless disregard of the probability of causing emotional distress. Plaintiff does not address this cause of action and it is not apparent that these deficiencies can be rectified by amendment. The demurrer to the fifth cause of action is SUSTAINED, with 20 days' leave to amend. *Sixth Cause of Action* Kingsbury contends that the sixth cause of action for negligent infliction of emotional distress fails to state facts sufficient to constitute a cause of action as the FAC does not identify any duty owed by Defendants beyond those arising from the commercial transaction; that the economic loss doctrine bars negligence-based emotional distress claims arising from a commercial contract dispute; and that this claim duplicates the negligent misrepresentation claim and should be dismissed. Plaintiff does not dispute these arguments, and therefore concedes the same. There is no independent tort of negligent infliction of emotional distress. (*Lawson v.*

		Management Activities, Inc. (1999) 69 Cal.App.4th 652, 656.) " 'The negligent causing of emotional distress is not an independent tort, but the tort of negligence [Citation.] The traditional elements of duty, breach of duty, causation, and damages apply . . . .' [Citations.]" (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072 ("*Burgess*").) A "direct victim" case allows damages for negligently inflicted emotional distress absent physical injury or impact where a duty arising from a preexisting relationship is negligently breached. (*Id*. at p. 1074.) Initially, Kingsbury's contention that the economic loss doctrine bars this claim is conclusory and unsupported by citation to authority. The court may "'disregard conclusory arguments that are not supported by pertinent legal authority or fail to disclose the reasoning by which [a party] reached the conclusion [he or she] wants [the court] to adopt.'" (*United Grand Corp. v. Malibu Hillbillies, LLC* (2019) 36 Cal.App.5th 142, 153 *citing City of Santa Maria v. Adam* (2012) 211 Cal.App.4th 266, 287.) Nor is this claim duplicative of the claim for negligent misrepresentation. However, the FAC does not allege a duty owed by Kingsbury to Plaintiff, and does not allege facts supporting the existence of a preexisting relationship. At best, the FAC alleges that Plaintiff paid Kingsbury for services, i.e., training and certification. Plaintiff does not address this cause of action and it is not apparent that these deficiencies can be rectified by amendment. The demurrer to the sixth cause of action is SUSTAINED, with 20 days' leave to amend. *Seventh Cause of Action* Kingsbury contends that the seventh cause of action for financial elder abuse fails to state facts sufficient to constitute a cause of action. Kingsbury asserts that Plaintiff has not met the heightened pleading standard for an elder abuse claim; that the FAC's conclusory allegations are insufficient; that the retention element fails as the $17,000 was voluntarily returned; that financial elder abuse statutes do not apply to ordinary commercial transactions; and that the FAC provides no facts sufficient to recovery attorney's fees

		under Welfare & Institutions Code section 15657.5. Plaintiff does not dispute these arguments, and therefore concedes the same. "[C]ivil actions may be brought under the Elder Abuse Act for 'physical abuse' (§§ 15610.63, 15657), 'neglect' (§§ 15610.57, 15657), or 'financial abuse' (§§ 15610.30, 15657.5)." (*Mahan v. Charles W. Chan Ins. Agency, Inc.* (2017) 14 Cal.App.5th 841, 858 ("Mahan").) Welfare and Institutions Code § 15610.30 states as follows: (a) "Financial abuse" of an elder or dependent adult occurs when a person or entity does any of the following: (1) Takes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both. (2) Assists in taking, secreting, appropriating, obtaining, or retaining real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both. (3) Takes, secretes, appropriates, obtains, or retains, or assists in taking, secreting, appropriating, obtaining, or retaining, real or personal property of an elder or dependent adult by undue influence, as defined in Section 15610.70. (b) A person or entity shall be deemed to have taken, secreted, appropriated, obtained, or retained property for a wrongful use if, among other things, the person or entity takes, secretes, appropriates, obtains, or retains the property and the person or entity knew or should have known that this conduct is likely to be harmful to the elder or dependent adult. (c) For purposes of this section, a person or entity takes, secretes, appropriates, obtains, or retains real or personal property when an elder or dependent adult is deprived of any property right, including by means of an agreement, donative transfer, or testamentary bequest, regardless of whether the property is held directly or by a representative of an elder or dependent adult.

		(Welf. & Inst. Code § 15610.30(a)-(c).) " 'Undue influence' means excessive persuasion that causes another person to act or refrain from acting by overcoming that person's free will and results in inequity." (Welf. & Inst. Code § 15610.70(a).) "Evidence of an inequitable result, without more, is not sufficient to prove undue influence." (Welf. & Inst. Code § 15610.30(b).) "Evidence of the equity of the result may include, but is not limited to, the economic consequences to the victim, any divergence from the victim's prior intent or course of conduct or dealing, the relationship of the value conveyed to the value of any services or consideration received, or the appropriateness of the change in light of the length and nature of the relationship. (Welf. & Inst. Code, § 15610.70(a)(4).) The FAC alleges that Plaintiff is a 65-year old senior, and that Defendants knowingly or negligently misrepresented the nature of the program and refund rights, exploiting Plaintiff's age and caregiving circumstances." (Complaint, Summary of Facts and Allegations.) It is alleged that Plaintiff paid $17,000 "under high-pressure sales tactics and false representations that the payment was necessary for training and certification," and that "a certificate was issued despite the absence of services." (Complaint, Summary of Facts.) Initially, Kingsbury's proposition that financial elder abuse statutes do not apply to ordinary commercial transactions is not supported by *Bounds v. Superior Court* (2014) 229 Cal.App.4th 468, 478-479. In fact, *Bound* states, "[t]he financial abuse provisions are, in part, premised on the Legislature's belief that in addition to being subject to the general rules of contract, financial agreements entered into by elders should be subject to special scrutiny." (*Bounds v. Superior Court* (2014) 229 Cal.App.4th 468, 478.) There is no distinction as to agreements for commercial transactions or business dealings.

		In addition, contrary to Kingsbury's assertion, aggravated circumstances is not required to recover attorney's fees under Welfare & Institutions Code section 15657.5(a), as cited by Kingsbury. Instead, Welfare & Institutions Code section 15657.5(a) states, in relevant part: "Where it is proven by a preponderance of the evidence that a defendant is liable for financial abuse, as defined in Section 15610.30, in addition to compensatory damages and all other remedies otherwise provided by law, the court shall award to the plaintiff reasonable attorney's fees and costs." (Welf. & Inst. Code § 15657.5(a).) "The attorney fee provision in section 15657.5 is not discretionary in nature." (*Arace v. Medico Investments, LLC* (2020) 48 Cal.App.5th 977, 983.) "Under the plain language of the statute, an award of attorney fees is a mandatory form of relief regardless of whether the plaintiff is awarded any other form of relief." (*Ibid*.) However, the allegations are insufficient to show that Kingsbury took the $17,000 from Plaintiff for a wrongful use or with intent to defraud. These allegations are also insufficient to show that Kingsbury took such funds "by undue influence, as defined in Section 15610.70," or that Kingsbury knew or should have known that taking the funds was likely to be harmful to Plaintiff. Plaintiff does not address this cause of action and it is not apparent that these deficiencies can be rectified by amendment. The demurrer to the seventh cause of action is SUSTAINED, with 20 days' leave to amend. <u>Motion to Strike Portions of FAC</u> Defendant, Michael Kingsbury, moves for an order striking portions of Plaintiff's First Amended Complaint, including (1) all references to and the entire seventh cause of action for financial elder abuse, (2) all claims for punitive and exemplary damages contained in the Prayer for Relief and throughout the Complaint, (3) all claims for statutory damages and attorney's fees under Welfare & Institutions Code section 15657.5, (4) the fifth and sixth causes of action for intentional and negligent infliction of

		emotional distress, and (5) any other irrelevant, false, or improper matter. In light of the Court's ruling on the demurrer, the motion to strike is MOOT. *Service on Plaintiff* Lastly, the Court notes that Kingsbury served Plaintiff, who self-represented, with the moving and reply papers by electronic service. Though no prejudice appears here, this is not proper. California Rules of Court, rule 2.253(b)(2) provides that "[s]elf-represented parties or other self-represented persons are exempt from any mandatory electronic filing and service requirements adopted by courts under this rule and Code of Civil Procedure section 1010.6." Additionally, "[i]n civil cases involving both represented and self-represented parties or other persons, represented parties or other persons may be required to file and serve documents electronically; however, in these cases, each self-represented party or other person is to file, serve, and be served with documents by non-electronic means unless the self-represented party or other person affirmatively agrees otherwise." (California Rules of Court, rule 2.253(b)(3).) There is no indication that Plaintiff has affirmatively agreed to electronic service. All parties are to comply with California Rules of Court, rule 2.253. The Case Management Conference is continued to August 27, 2026 at 1:30 p.m. *Kingsbury to give notice.*
111	Ariaga vs. City of Brea, 24-01403550	*Off-calendar.*
112		*Off-calendar.*

113	1513 Civic Center LLC vs. De Delgado, 25-01496605	Caboraca Investments, Inc.'s Motion to Quash the deposition subpoena that Plaintiff served on JP MORGAN CHASE BANK, N.A., with a production date of October 1, 2025, see ROA 27, came before the Court for a hearing on 04/09/2026. (ROA 82.) In the Court's Minute Order following the hearing, the Court stated the following: "Second, the motions filed by 920 North Grand Ave, LLC and Caboraca Investments, Inc. to quash the deposition subpoena that Plaintiff served on JP MORGAN CHASE BANK, N.A., with a production date of October 1, 2025 were not served on the witness (Chase) as required pursuant to Code of Civil Procedure section 1985(g). (ROAs 23 and 27.) As stated above, the motion filed by 920 North Grand Ave, LLC is VACATED. Caboraca Investments, Inc.'s motion, however, is CONTINUED TO May 21, 2026 at 1:30 p.m. Moving party shall filed proof of service on Chase **no later than 16 court days before** the continued hearing." (ROA 82 [bold emphasis added].) As set forth above, the Court ordered that Caboraca Investments, Inc. was to file a proof of service establishing service of its motion to quash the deposition subpoena at issue on Chase no later than 16 court days before the continued hearing. Caboraca Investments, Inc. failed to file this proof of service and therefore has not complied with the statutory notice requirements pursuant to Code of Civil Procedure section 1985(g). As such, the motion to quash is DENIED WITHOUT PREJUDICE. *Moving party to give notice.*